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Transcribed from HathiTrust, umn.31951d02280223t, 1952, ch. 569 (printed p. 934), read in the browser on 1 October 2026. This is not the page the site serves: it refuses an automated request, so what is filed is the text layer the page carries, taken as it stands. Where the transcript and the printed page could differ the printed page governs; the annotation in paper/sources.bib says which passages were read against the page image.

Acts and Joint Resolutions of the General Assembly of Virginia, 1952, ch. 569 (printed p. 934)

[seq 938, printed p. 934]

934 [VA., 1952 ACTS OF ASSEMBLY State treasury, or out of such funds as shall be appropriated for the purpose, annual compensation in an amount equal to * three-fourths of the annual salary being received by him immediately prior to his retirement. Such compensation shall be paid by the State Treasurer in monthly or semi-monthly installments, upon warrants of the Comptroller. CHAPTER 569 An Act to amend the Code of Virginia by adding a section numbered 15-352.3, providing for a referendum on the question of the creation of the office of county attorney in certain counties, and the method of his selection; and prescribing the compensation, duties, qualifications and term of office of such official. [? 443] Approved April 3, 1952 Be it enacted by the General Assembly of Virginia: 1. That the Code of Virginia be amended by adding a section numbered 15-352.3, as follows: § 15-352.3. (1) In the year nineteen hundred fifty-two there may in any county adopting the form of organization and government provided for in this article be a referendum on the following questions: 1. Shall the position of attorney to the County Board be created? Yes No 2. If such position is created, shall the county attorney be: Elected by the people Appointed by the County Board The provisions of § 15-360.1 shall apply, and if a majority of the qualified voters voting in an election therein provided for, vote in favor of the creation of such position, then the County Board shall provide for the creation of the office of county attorney in accordance with the results of such referendum and fix his compensation, which shall not be less than thirty-five hundred dollars, nor more than six thousand dollars. (2) The duties of the county attorney shall consist in representing the County Board in any legal proceeding in which the Board or any of its members are sued in their official capacity; providing legal advice to the Board in the form of written opinions in connection with the official acts of such Board or its members; preparing county ordinances when requested to do so by the County Board; codifying the ordinances of the county; attending all Board meetings; performing all legal services incident to the foregoing powers; and performing such other duties as may be prescribed by the Board; provided that such duties shall not include bringing any suit or action on behalf of the county board or its members. (3) No duties shall be assigned the county attorney which are in conflict with those duties required by law to be performed by the Attorney for the Commonwealth of the county; provided, that, if such county attorney is

provided for, the Commonwealth's attorney shall not be required to attend meetings of the County Board. (4) Should the voters favor the appointment of the County Attorney by the County Board he shall serve at the pleasure of the Board but in no case shall his period of employment exceed one year without renewal by a majority vote of said Board. It shall be unlawful for the County Board to employ more than one attorney at a time and in the case of such employment he shall be designated as the County Attorney by appropriate written resolution adopted by a majority vote of the County Board and